THE NATIONAL ARCHIVES OF THE UNITED STATES 1934
LITTERA SCRIPTA MANET

FEDERAL REGISTER

VOLUME 4 NUMBER 223

Washington, Friday, November 17, 1939

The President

EXECUTIVE ORDER

PRESCRIBING THE DUTIES OF THE LIBRARIAN EMERITUS OF THE LIBRARY OF CONGRESS

By virtue of and pursuant to the authority vested in me as President of the United States by the act of June 20, 1938, 52 Stat. 808, I hereby prescribe the duties of the Librarian Emeritus of the Library of Congress to be such duties as in the judgment of the Librarian Emeritus will most effectively promote the increase of the collections of the Library of Congress by gifts of money and materials, and the increase of the trust funds and other endowments by means of which the Library of Congress maintains its Chairs, Consultantships, concerts, and other aids and services to those interested in learning and the arts.

FRANKLIN D ROOSEVELT

THE WHITE HOUSE,
November 13, 1939.

[No. 8284]

[F. R. Doc. 39-4239; Filed, November 15, 1939; 2:38 p. m.]

Rules, Regulations, Orders

TITLE 8—ALIENS AND CITIZENSHIP

IMMIGRATION AND NATURALIZATION SERVICE

[General Order No. C-16]

AMENDED INTERPRETATION OF THE CITIZENSHIP ACT OF MAY 24, 1934

NOVEMBER 15, 1939.

Pursuant to the authority contained in Revised Statutes, section 161 (U.S.C., title 5, sec. 22), and other provisions of law, Section 2 (b) of General Order No. 211, dated August 2, 1934, entitled "Administrative Interpretation of the Citizenship Act of May 24, 1934" (Secs. 2, 5, 48 Stat. 797, 798; 8 U.S.C. 8, et al.), as amended,[1] (Naturalization Rules and Regulations of December 1, 1936, pp. 106–109), is hereby amended to read as follows:

(b) In addition to the provisions of the Citizenship Act of 1934, Revised Statutes, section 2172 (U.S.C., title 8, sec. 7) (which has not been expressly repealed and only part of which has been repealed by implication), continues to operate and even after May 24, 1934, vests citizenship as follows:

(1) Revised Statutes, section 2172, provides that a child is a United States citizen if—

(a) He did not prior to 12 noon (E.S.T.), May 24, 1934, acquire citizenship under Revised Statutes, section 1993 (U.S.C., title 8, sec. 6) and is not a citizen under any other law, including that stated in subsection (b) of section 1 of this order; and

(b) He was born abroad at any time; and

(c) One parent was an alien at the time of the child's birth; and

(d) The other parent was either an alien or a citizen at the time of the child's birth; and

(e) The alien parent became naturalized before the child reached his twenty-first birthday or, if both parents were aliens, both became naturalized or but one became naturalized and the other parent died before the child reached his twenty-first birthday; and

(f) The child began to reside permanently in the United States before he reached his twenty-first birthday; and maintained such residence when the final event described in paragraph (e) hereof occurred, namely, the naturalization or death of such parent.

[SEAL] JAMES L. HOUGHTELING,
Commissioner.

Approved:

FRANCES PERKINS,
Secretary.

[F. R. Doc. 39-4247; Filed, November 16, 1939; 12:11 p. m.]

[1] 3 F.R. 92 (110 DI).

CONTENTS

THE PRESIDENT

RULES, REGULATIONS, ORDERS

NOTICES

(Continued on next page)

FEDERAL REGISTER

Published by the Division of the Federal Register, The National Archives, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. L. 500), under regulations prescribed by the Administrative Committee, with the approval of the President.

The Administrative Committee consists of the Archivist or Acting Archivist, an officer of the Department of Justice designated by the Attorney General, and the Public Printer or Acting Public Printer.

The daily issue of the FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1 per month or $10 per year; single copies 10 cents each; payable in advance. Remit by money order payable to Superintendent of Documents, Government Printing Office, Washington, D. C.

Correspondence concerning the publication of the FEDERAL REGISTER should be addressed to the Director, Division of the Federal Register, The National Archives, Washington, D. C.

CONTENTS—Continued

[General Order No. C-17]

PERMISSIBLE ABSENCE OF CERTAIN ALIENS FROM THE UNITED STATES DURING THE PERIODS OF RESIDENCE REQUIRED BY THE NATURALIZATION LAWS

NOVEMBER 15, 1939.

Pursuant to the authority contained in Sec. 2 of the Act of August 9, 1939 (Public No. 349, c. 610, 53 Stat. 1273), Title 8 of the Code of Federal Regulations, Subchapter C—Naturalization Rules and Regulations—Part 72—Official Forms — and Part 76 — Petition for Naturalization—are amended in the following respects:

Section 72.3 (Rule 3, Subdivision B, par. 1 of the Naturalization Regulations of December 1, 1936), by changing the title of Form 2363 to read

FORM NO.	TITLE
2363	Application for exemption from the residence provisions of the second paragraph of the Fourth Subdivision of Sec. 4 of the Naturalization Act of June 29, 1906, as amended and supplemented.

Section 76.16 (Rule 7, Subdivision E, Ibid.), supplied by General Order No. C-6, November 2, 1938 (3 F.R. 2621, DI), and amended by General Order No. C-7, November 19, 1938 (3 F.R. 2767, DI), is further amended to read as follows:

§ 76.16 *Application forms.* Application for the benefits of Sec. 76.15, Sec. 76.15b, or Sec. 76.16a shall be submitted in duplicate to the Secretary of Labor on Form No. 2363, "Application for exemption from the residence provisions of the second paragraph of the Fourth Subdivision of Sec. 4 of the Naturalization Act of June 29, 1906, as amended and supplemented." The application will be duly considered by the Secretary of Labor and the alien notified of the decision thereon. A copy of such decision, verified or certified by the Commissioner of Immigration and Naturalization, or any Deputy Commissioner of Immigration and Naturalization, shall be filed in the naturalization court with the alien's petition for naturalization as a part of the record of the naturalization proceeding.* (Sec. 28, 34 Stat. 606, sec. 8, 45 Stat. 1515; 8 U.S.C. 356; Sec. 1, 53 Stat. 1273)

* * * * *

The following new section is added to the aforesaid Part 76, between Secs. 76.16 and 76.17 (such new section being addenda to Rule 7, Subdivision E of the Naturalization Regulations of December 1, 1936):

§ 76.16a *Regularly ordained clergymen.* For the purpose of naturalization, any alien who has been lawfully admitted into the United States for permanent residence shall be considered as residing in the United States notwithstanding any absence therefrom if such alien

(a) Has, subsequently to such admission, been absent temporarily from the United States solely in his or her capacity as a regularly ordained clergyman;

(b) Proves to the satisfaction of the Secretary of Labor and the naturalization court that his or her absence from the United States has been solely in capacity of a regularly ordained clergyman, and

(c) Complies in all other respects with the requirements of the naturalization laws.

(Sec. 1, 53 Stat. 1273)

[SEAL] JAMES L. HOUGHTELING,
Commissioner.

Approved:

FRANCES PERKINS,
Secretary.

[F. R. Doc. 39-4248; Filed, November 16, 1939; 12:11 p. m.]

TITLE 16—COMMERCIAL PRACTICES

FEDERAL TRADE COMMISSION

[Docket No. 3725]

IN THE MATTER OF LAING, HARRAR & CHAMBERLIN, INC., ET AL.

§ 3.24 (e) (1) *Coercing and intimidating—Suppliers of competitors—By boycotting and threats of:* § 3.33 (e) *Cutting off competitors' supplies — Threatening withdrawal of patronage.* Boycotting or threatening to boycott, or using any other coercive methods or means, to persuade, induce or compel manufacturers or distributors of shoe findings, leather and supplies for shoe stores and shoe repair shops, to refrain from selling any of such products to any wholesale dealer therein; in connection with offer, etc., in commerce, of said products, and on the part of respondent wholesalers thereof, and in pursuance of agreement, understanding, combination or conspiracy between or among themselves or any of them and a manufacturer of such products, with intent or effect of restricting, restraining, or monopolizing, or eliminating competition in, purchase or sale thereof; prohibited. (Sec. 5, 38 Stat. 719, as amended by Sec. 3, 52 Stat. 112; 15 U.S.C., Supp. IV, sec. 45b) [Cease and desist order, Laing, Harrar & Chamberlin, Inc., et al., Docket 3725, November 2, 1939]

§ 3.33 (e) *Cutting off competitors' supplies—Threatening withdrawal of patronage.* Interfering in any manner with any competitive wholesale dealer's source of supply of shoe findings, leather and supplies for shoe stores and shoe repair shops; in connection with offer, etc., in commerce, of said products, and on the part of respondent wholesalers thereof, and in pursuance of agreement, understanding, combination or conspiracy between or among themselves or any of them and a manufacturer of such products, with intent or effect of restricting, restraining, or monopolizing, or eliminating competition in, purchase or sale thereof; prohibited. (Sec. 5, 38 Stat. 719, as amended by Sec. 3, 52 Stat. 112; 15 U.S.C., Supp. IV, sec. 45b) [Cease and desist order, Laing, Harrar & Chamberlin, Inc., et al., Docket 3725, November 2, 1939]

§ 3.27 (b) (1) *Combining or conspiring—To eliminate competition—In conspirators' goods.* Entering into or carrying out any agreement, understanding, combination or conspiracy between and among any two or more of respondent wholesalers, or between any one of them and manufacturer of said products, in connection with offer, etc., in commerce, of shoe findings, leather and supplies for shoe stores and shoe repair shops, and with intent or effect of restricting, restraining, monopolizing, or eliminating competition in, purchase or sale thereof, and in pursuance of such agreement, etc., boycotting, or threatening to boycott, or using any other coercive methods or means, to persuade, induce or compel manufacturers or distributors of such products to refrain from selling any of such products to any wholesale dealer in such products; or interfering, in any manner, with any competitive wholesale dealer's source of supply of such products; prohibited. (Sec. 5, 38 Stat. 719, as amended by Sec. 3, 52 Stat. 112; 15 U.S.C., Supp. IV, sec. 45b) [Cease and desist order, Laing, Harrar & Chamberlin, Inc., et al., Docket 3725, November 2, 1939]

§ 3.7 *Aiding, assisting and abetting unfair or unlawful act or practice:* § 3.27 (b) (1) *Combining or conspiring—To eliminate competition—In conspirators' goods:* § 3.33 (b10) *Cutting off competitors' supplies—Refusing sales to.* Entering into any agreement, understanding, combination or conspiracy, in connection with offer, etc., in commerce, of shoe findings, leather and supplies for shoe stores and shoe repair shops, and on the part of respondent distributor, its officers, etc., with intent or effect of restricting, restraining or monopolizing, or eliminating competition in, purchase or sale of such products; or aiding or abetting the carrying out of such agreement, etc., by refusing to sell such products to wholesale dealers engaged in the sale and distribution thereof because of inducements offered, or coercive methods used, by such wholesalers' competitors; prohibited. (Sec. 5, 38 Stat. 719, as amended by Sec. 3, 52 Stat. 112; 15 U.S.C., Supp. IV, sec. 45b) [Cease and desist order, Laing, Harrar & Chamberlin, Inc., et al., Docket 3725, November 2, 1939]

United States of America—Before Federal Trade Commission

At a regular session of the Federal Trade Commission, held at its office in the City of Washington, D. C., on the 2nd day of November, A. D. 1939.

Commissioners: Robert E. Freer, Chairman; Garland S. Ferguson, Charles H. March, Ewin L. Davis, William A. Ayres.

IN THE MATTER OF LAING, HARRAR & CHAMBERLIN, INC., A. J. SANBORN SONS, INC., HARRY FAIN AND ALFRED PICERNO

ORDER TO CEASE AND DESIST

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the answers of the respondents, and a stipulation as to the facts entered into between the respondents herein and W. T. Kelley, Chief Counsel for the Commission which provides, among other things, that without further evidence or other intervening procedure, the Commission may issue and serve upon the respondents herein findings as to the facts and conclusion based thereon and an order disposing of the proceeding, and the Commission having made its findings as to the facts and conclusion that said respondents have violated the provisions of the Federal Trade Commission Act;

It is ordered, That the respondents, A. J. Sanborn Sons, Inc., its officers, representatives, agents and employees, Harry Fain and Alfred Picerno, their agents, representatives and employees, directly or through any corporate or other device, in connection with the offering for sale, sale and distribution of shoe findings, leather and supplies for shoe stores and shoe repair shops in commerce, as commerce is defined in the Federal Trade Commission Act, do forthwith cease and desist from entering into or carrying out any agreement, understanding, combination or conspiracy between and among any two or more of said respondents, or between any one of said respondents and a manufacturer of such products, for the purpose or with the effect of restricting, restraining or monopolizing, or eliminating competition in, the purchase or sale in said commerce of any of such products, and from doing any of the following acts and things pursuant thereto:

1. Boycotting, or threatening to boycott, or using any other coercive methods or means, to persuade, induce or compel manufacturers or distributors of such products to refrain from selling any of such products to any wholesale dealer in such products;

2. Interfering, in any manner, with any competitive wholesale dealer's source of supply of such products.

It is further ordered, That the respondent, Laing, Harrar & Chamberlin, Inc., its officers, representatives, agents and employees, directly or through any corporate or other device, in connection with the offering for sale, sale and distribution of shoe findings, leather and supplies for shoe stores and shoe repair shops in commerce, as commerce is defined in the Federal Trade Commission Act, do forthwith cease and desist from entering into any agreement, understanding, combination or conspiracy for the purpose or with the effect of restricting, restraining or monopolizing, or eliminating competition in, the purchase or sale of such products in said commerce; or from aiding or abetting the carrying out of any such agreement, understanding, combination or conspiracy by refusing to sell such products to wholesale dealers engaged in the sale and distribution of such products because of inducements offered, or coercive methods used, by competitors of such wholesalers.

It is further ordered, That the respondents shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing, setting forth in detail the manner and form in which they have complied with this order.

By the Commission.

[SEAL] OTIS B. JOHNSON, *Secretary*.

[F. R. Doc. 39-4241; Filed, November 16, 1939; 9:34 a. m.]

TITLE 24—HOUSING CREDIT

FEDERAL SAVINGS AND LOAN INSURANCE CORPORATION

AMENDMENT TO RULES AND REGULATIONS FOR INSURANCE OF ACCOUNTS

ELIMINATING REQUIREMENT THAT INSURED INSTITUTIONS OBTAIN APPROVAL OF THE CORPORATION TO THE ACQUISITION OF BULK ASSETS THROUGH THE USE OF BORROWED MONEYS

Be it resolved, That the first sentence of Section 301.17 of the Rules and Regulations for Insurance of Accounts is amended, effective November 16, 1939, by striking the words "and/or its creditor obligations" where they appear in such sentence. (Secs. 402 (a), 403 (c) of N.H.A., 48 Stat. 1255, 1258; 12 U.S.C. 1725 (a), 1726 (c))

Be it further resolved, That this amendment is deemed to be of a minor and procedural character within the provisions of paragraph (c) of Section 301.22 of the Rules and Regulations for Insurance of Accounts.

Adopted by the Board of Trustees of Federal Savings and Loan Insurance Corporation on November 15, 1939.

[SEAL] H. CAULSEN, *Assistant Secretary*.

[F. R. Doc. 39-4244; Filed, November 16, 1939; 11:45 a. m.]

TITLE 31—MONEY AND FINANCE: TREASURY

OFFICE OF THE COMMISSIONER OF ACCOUNTS AND DEPOSITS

[1939—Department Circular No. 625]

PART 226—SURETY COMPANIES

BONDS EXECUTED BY THE MELLBANK SURETY CORPORATION OF PITTSBURGH, PENNSYLVANIA, IN FAVOR OF THE UNITED STATES

To the Heads of Departments and Independent Establishments of the Government, Bond-Approving Officers, and Others Concerned:

The Mellbank Surety Corporation of Pittsburgh, Pennsylvania, was authorized by the Treasury, effective March 30, 1932, to qualify as sole surety on recognizances, stipulations, bonds and all other undertakings permitted or required by the United States to be given with one or more sureties, as provided by the Act of Congress approved August 13, 1894, as amended by the Act of March 23, 1910 (U.S.C., Title 6, Sections 6 to 13). The company has surrendered its charter to the State of Delaware and is in the process of voluntary liquidation, pursuant to resolutions adopted by its stockholders and Board of Directors on October 26, 1939. The certificate of authority issued by the Secretary of the Treasury to the company to act as an acceptable surety on obligations in favor of the United States was revoked effective October 27, 1939.

The provisions of the Act of Congress approved August 13, 1894, as amended, contemplate a constant supervision by the Treasury of all companies acting as sureties on Federal bonds. The Mellbank Surety Corporation, therefore, entered into a reinsurance agreement with the Mellon Indemnity Corporation, with executive offices in Pittsburgh, Pennsylvania, dated October 26, 1939, under the terms and conditions of which the Mellon Indemnity Corporation reinsured, effective at and from 12:01 A. M., October 27, 1939, all the unexpired and unmatured fidelity and surety bonds or obligations of the Mellbank Surety Corporation in favor of the United States of America and/or any wholly owned corporation thereof and/or the District of Columbia and all bonds or other obligations naming as obligee officers or employees of the United States of America and/or any wholly owned corporation thereof and/or the District of Columbia, and accepted liability for any losses and claims in connection with all bonds and undertakings entered into and assumed by the Mellbank Surety Corporation.

The Treasury has received evidence of a contribution to surplus by the stockholders of the Mellon Indemnity Corporation on October 26, 1939, and the underwriting limitation of the Mellon Indemnity Corporation as published in Treasury Form No. 356, dated September 22, 1939, effective September 18, 1939, has been increased to $439,000.00.

The Treasury has obtained from the Mellon Indemnity Corporation a separate indemnifying agreement, dated October 27, 1939, whereby, in consideration of the acceptance by the United States of America of the Mellon Indemnity Corporation as reinsurer on such bonds, undertakings or other forms of obligations heretofore executed or assumed by the Mellbank Surety Corporation and allowing such bonds, undertakings or other forms of obligations to be continued in force without requiring principals to take out fresh bonds, the Mellon Indemnity Corporation agrees to assume, and it does assume, the liability for any losses and claims under or in connection with any bond, undertaking or other form of obligation entered into and assumed by the Mellbank Surety Corporation and reinsured by the Mellon Indemnity Corporation, in which the United States of America has or may have an interest, direct or indirect, it being expressly understood and agreed by the Mellon Indemnity Corporation that the purpose and intent of such agreement is to afford the United States of America complete and strengthening security and to indemnify and protect it against any and all losses that have arisen or may arise under or in connection with any and all such bonds, undertakings, or obligations of the Mellbank Surety Corporation as sole surety, co-surety, insurer, co-insurer or reinsurer, upon which the United States of America is or may become entitled to make demand or institute proceedings, and which may have been executed by the Mellbank Surety Corporation on or before October 27, 1939, the date on which its authority to act as an acceptable surety on bonds or obligations in favor of the United States of America was revoked.

The aforesaid indemnifying agreement also provides that all persons who have supplied labor and/or materials in the transaction of the work contemplated by any contract for the security of which a bond has been given to the United States of America with the Mellbank Surety Corporation as sole or co-surety, and covered by the reinsurance agreement referred to above, shall have the same rights and equities against the Mellon Indemnity Corporation to sue and recover in the name of the United States of America as such persons would have under the provisions of existing law against the Mellbank Surety Corporation on account of its said bonds and obligations.

The agreement further provides that the Mellon Indemnity Corporation shall be subject to legal process for the purpose of all suits by the United States of America on account of said bonds or undertakings and obligations included in the reinsurance agreement referred to, and in the name of the United States of America, for their use, by such persons furnishing materials and/or labor, as aforesaid, under the provisions of existing law and on account of said bonds, obligations and undertakings, through the acceptance of service and entry of appearance by its duly appointed agents for such purpose in any judicial district of the United States as provided by law.

[SEAL] JOHN W. HANES,
Acting Secretary of the Treasury.

[F. R. Doc. 39-4253; Filed, November 16, 1939; 12:44 p. m.]

TITLE 38—PENSIONS, BONUSES, AND VETERANS' RELIEF

VETERANS' ADMINISTRATION

REVISION OF REGULATIONS

RESTORATION OF BENEFITS FOR CLAIMANTS SUFFERING FROM PARALYSIS, PARESIS, OR BLINDNESS, OR WHO ARE HELPLESS OR BEDRIDDEN DUE TO MISCONDUCT

Application of Public No. 196, 76th Congress

§ 2.1138 (A) On and after July 19, 1939, the date of enactment of Public No. 196, 76th Congress, any World War veteran suffering from paralysis, paresis, or blindness, or who is helpless or bedridden, as the result of any disability, and who was in receipt of compensation therefor on March 19, 1933, may be awarded compensation under the laws and interpretations governing this class of cases prior to the enactment of Public No. 2, 73d Congress, subject to the limitations, except as to misconduct or willful misconduct, contained in sections 27 and 28 of Public No. 141, 73d Congress, as amended: *Provided,* That compensation authorized under section 26 of Public No. 141, 73d Congress, will not be reduced or discontinued as a result of the application of the enactment.

(B) In the application of the limitations contained in sections 27 and 28 of Public No. 141, 73d Congress, except as to misconduct or willful misconduct, it will be borne in mind that all reasonable doubts will be resolved in favor of the veteran, the burden of proof being on the Government, and a denial of benefits will not be made merely upon a difference of opinion. The delimiting dates of the World War under existing legislation will be applied; for the purposes of Public No. 196, 76th Congress, the ending date of the World War will, therefore, be April 1, 1920, for those who served with the United States military forces in Russia.

(C) The compensation award or disability rating in the case of any World War veteran restored to the rolls or determinable under Public No. 196, 76th Congress, will be adjusted at any time upon the happening of a change in any of the contingencies upon which the current status is predicated, such as a change in family relationship, a change in physical condition, etc., as disclosed by competent evidence or a report of physical examination, and the effective date of the adjustment will be in accordance with the applicable regulations. (November 16, 1939)

Principles for Observance in Application of Public No. 196, 76th Congress

§ 2.1139 (A) In interpreting the diseases specified in the first proviso of Section 200 of the World War Veterans Act, as amended, "paralysis" will be taken to mean the more massive motor or sensory losses, involving one or both of the upper or lower extremities, resulting from lesions of the central nervous system which are regarded as due to willful misconduct. For example, the hemiplegia consequent upon cerebral hemorrhage in syphilitic cerebral arteritis; also the ataxic gait of tabes dorsalis; the spastic paraplegia of primary lateral sclerosis; the flaccid or spastic paralysis of myelitis; gait disturbances in disseminated sclerosis; the paralysis of limbs in syphilitic meningo-myelitis, etc. The rating in these cases will date from the onset of the station or gait disturbances to a degree which reduces earning capacity in accordance with the provisions of Section 202 (4), second paragraph, of the World War Veterans Act, 1924, as amended, as reenacted by Public No. 141, 73d Congress. Localized palsies of cranial or peripheral nerves, due to willful misconduct, will not be considered "paralysis" within the meaning of the first proviso of Section 200.

(B) "Paresis" will be interpreted as general paralysis of the insane, or paretic dementia.

(C) Visual disability due to syphilitic lesions of the second cranial (optic) nerve, or to gonorrheal ophthalmia, will be considered as "blindness" when 5/200 or less vision, in both eyes, is present after proper correction.

(D) By "helpless" will be understood a condition requiring the assistance of other persons, though not necessarily rendering the claimant in constant need of a nurse or attendant.

(E) By "bedridden" will be understood that conditions which, through its essential character, actually requires that the claimant remain constantly in bed. The fact that a claimant has voluntarily taken to bed, or that a physician has prescribed rest in bed for a greater or less part of the day in order to promote convalescence or cure, will not necessarily mean that such claimant is to be regarded as helpless or bedridden, his further right to the additional allowance for an attendant or nurse will be considered in the same manner as for any other case.

(F) The ratings for cases held to be actually helpless or bedridden will date from the onset of such conditions.

(G) While the conditions specified in the first proviso of Section 200 of the World War Veterans Act, 1924, as amended, are usually of a permanent nature, the law does not require the individual case to be one of permanent disability in order that the benefits of the said proviso shall be applicable.

(H) Except for cases comprehended within these interpretations, all other disabilities due to willful misconduct will continue to be rated in accordance with current regulations. Cases falling under the first proviso of Section 200 of the World War Veterans Act, as amended, as reenacted by Public No. 141, 73d Congress, may be connected directly or presumptively (under the second proviso of said section) with active military or naval service. (November 16, 1939)

[SEAL] FRANK T. HINES,
Administrator.

[F. R. Doc. 39-4240; Filed, November 15, 1939; 3:18 p. m.]

Notices

DEPARTMENT OF AGRICULTURE.

Rural Electrification Administration.

[Administrative Order No. 410]

ALLOCATION OF FUNDS FOR LOANS

NOVEMBER 8, 1939.

By virtue of the authority vested in me by the provisions of Section 5 of the Rural Electrification Act of 1936, as amended, I hereby allocate, from the sums authorized by said Act, funds for loans for the projects and in the amounts as set forth in the following schedules:

Project designation:	*Amount*
Florida 0017W2 Jackson	$10,000
Georgia R9084W1 Cobb	5,000
Illinois R9008W1 Coles	3,500
Indiana R9009W1 Marshall	5,000
Indiana R9016W1 Henry	2,000
Iowa R9043W1 Greene	5,000
Iowa 7071W1 Buchanan	5,000
Kentucky R9037W1 Owen	1,000
Minnesota R9004W1 Lake	1,000
Oklahoma 0026W1 Harmon	10,000
Pennsylvania R9020W1 Blair	5,000
Tennessee 0024W1 Montgomery	10,000
Texas 7045W1 Limestone	4,000

[SEAL] HARRY SLATTERY,
Administrator.

[F. R. Doc. 39-4245; Filed, November 16, 1939; 11:58 a. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

CORRECTION OF NOTICE OF OPPORTUNITY TO PETITION FOR REVIEW OF DETERMINATION GRANTING APPLICATION FOR PARTIAL EXEMPTION OF THE OPEN-CUT PLACER GOLD MINING INDUSTRY AS A SEASONAL INDUSTRY

Whereas, Harold Stein, the Presiding Officer at the hearing on the application for partial exemption of the open-cut placer gold mining industry as a seasonal industry pursuant to Section 7 (b) (3) of the Fair Labor Standards Act of 1938 and Part 526, as amended, of regulations issued thereunder, made and filed with the Acting Administrator findings of fact and determination as a result of such hearing, and

Whereas, on the basis of said findings of fact and determination, there was published in the FEDERAL REGISTER of November 15, 1939 (4 F.R. 4588 DI), a "Notice of Opportunity to Petition for Review of Determination Granting Application for Partial Exemption of the Open-Cut Placer Gold Mining Industry as a Seasonal Industry Pursuant to Section 7 (b) (3) of the Fair Labor Standards Act of 1938 and Part 526 as Amended of Regulations Issued Thereunder" in which the findings of fact and determination of the Presiding Officer were recited, and,

Whereas, after the publication of said Notice in the FEDERAL REGISTER, it appeared that through error the word "Wyoming" had been inadvertently omitted from paragraph 1 of said findings of fact and determination, and

Whereas, said Harold Stein has corrected paragraph 1 of said findings of fact and determination by adding the word "Wyoming" immediately after the word "Washington,"

Now, therefore, paragraph 1 of said findings of fact and determination of the presiding officer as set forth in the aforesaid "Notice of Opportunity to Petition for Review of Determination Granting Application for Partial Exemption of the Open-Cut Placer Gold Mining Industry as a Seasonal Industry Pursuant to Section 7 (b) (3) of the Fair Labor Standards Act of 1938 and Part 526 as Amended of Regulations Issued Thereunder," is hereby corrected by adding the word "Wyoming" immediately after the word "Washington" so that paragraph 1 shall read as follows:

"1. The open-cut mining of placer gold in the States of Idaho, Montana, Nevada, Oregon, South Dakota, Utah, Washington, Wyoming, and the Territory of Alaska, is a branch of the open-cut placer gold mining industry as defined in the Notice of Hearing, and"

Signed at Washington, D. C., this 16 day of November 1939.

HAROLD D. JACOBS,
Acting Administrator.

[F. R. Doc. 39-4246; Filed, November 16, 1939; 12:01 p. m.]

NOTICE OF ISSUANCE OF SPECIAL CERTIFICATES FOR THE EMPLOYMENT OF LEARNERS IN THE APPAREL INDUSTRY

Notice is hereby given that Special Certificates for the employment of learners in the Apparel Industry at hourly wages lower than the minimum wage applicable under Section 6 of the Fair Labor Standards Act of 1938 are issued ex parte under Section 14 of the said Act, Section 522.5 (d) of Regulations Part 522, as amended, to the employers listed below effective November 17, 1939, until October 24, 1940, subject to the following terms:

OCCUPATIONS, WAGE RATES, AND CONDITIONS

The employment of learners in the Apparel Industry under these Certificates is limited to the following occupations, learning periods, and minimum wage rates:

(1) A learner is a person who has had less than eight weeks experience in the past three years upon a stitching operation in the Apparel Industry.

(2) The employment of learners under these Certificates is limited to the operation of stitching machines and for eight (8) weeks for any one learner. During this period, learners shall be paid at least 22½¢ per hour. If experienced workers are paid on a piece rate basis, the same piece rates shall be paid to the learners employed on similar work and they shall receive earnings on such piece rates if in excess of 22½¢ per hour, but in no case less than 22½¢ per hour.

(3) These Special Certificates are issued on representations by the employers that experienced stitching machine operators are not available.

(4) Any one of these Special Certificates shall be canceled as of the date of its issue if found that experienced workers were available when the Certificate was issued and shall be can-

celed prospectively or as of the date of violation if found that any of its terms have been violated or that skilled workers have become available.

(5) Under these Special Certificates, no learner shall be employed at a sub-minimum wage until and unless the Certificate is posted and kept posted in a conspicuous place in the plant in which learners are employed.

NUMBER OF LEARNERS

Not in excess of 5% of the total number of stitching machine operators employed in the plant may be employed under any of these Certificates, unless otherwise indicated hereinbelow opposite the employer's name:

NAME AND ADDRESS OF FIRM AND PRODUCT

Alabama Textile Products Corp., Andalusia, Alabama, men's shirts and shorts.

Buttnick Manufacturing Company, Seattle, Washington (5 learners), work clothing.

Casey Jones, Inc., Denton, Maryland (5 learners), overalls.

Casey Jones, Inc., Elkton, Virginia (5 learners), overalls.

Casey Jones, Inc., Luray, Virginia (5 learners), overalls.

Casey Jones, Inc., Mount Jackson, Virginia (5 learners), work shirts.

Casey Jones, Inc., Shenandoah, Virginia (5 learners), overalls.

Casey Jones, Inc., Woodstock, Virginia (5 learners), overalls.

Georgia Shirt Company, Cornelia, Georgia, work shirts.

G. H. Hess, Incorporated, Louisville, Ohio (5 learners), uniforms and dresses.

Honesdale Garment Company, Honesdale, Pennsylvania (5 learners), dresses.

Ide Shirt Corporation, Troy, New York, men's shirts.

Junior Shirt Company, Greensboro, Maryland (4 learners), boys' shirts.

Morris Schwartz Dress Co., Montgomery, New York (2 learners), dresses.

Mutual Garment Company, Washington, Missouri (3 learners), slips, nightgowns & pajamas.

Reliance Manufacturing Co., Anamosa, Iowa, work shirts.

Robinson Manufacturing Co., Dayton, Tennessee (3 learners), woven cotton underwear.

Shawnee Garment Mfg. Co., Shawnee, Oklahoma (4 learners), overalls and work pants.

Shelby Manufacturing Co., Shelbyville, Indiana, dresses.

Signed at Washington, D. C., this 16th day of November 1939.

GUSTAV PECK,
Assistant Director,
Hearings Branch.

[F. R. Doc. 39-4249; Filed, November 16, 1939; 12:29 p. m.]

NOTICE OF ISSUANCE OF A SPECIAL CERTIFICATE FOR THE EMPLOYMENT OF LEARNERS IN THE APPAREL INDUSTRY

Notice is hereby given that a Special Certificate for the employment of learners in the Apparel Industry at hourly wages lower than the minimum wage applicable under Section 6 of the Fair Labor Standards Act of 1938 is issued to the employer listed below effective November 17, 1939, until March 15, 1940, subject to the following terms and limited to the number of learners indicated opposite the employer's name:

OCCUPATIONS, WAGE RATES, AND CONDITIONS

The employment of learners in the Apparel Industry under this Certificate is limited to the following occupations, learning periods, and minimum wage rates:

(1) A learner is a person who has had less than eight weeks experience in the past three years upon a stitching operation in the Apparel Industry.

(2) The employment of learners under this Certificate is limited to the operation of stitching machines and for eight (8) weeks for any one learner. During this period, learners shall be paid at least 22½¢ per hour. If experienced workers are paid on a piece rate basis, the same piece rates shall be paid to the learners employed on similar work and they shall receive earnings on such piece rates if in excess of 22½¢ per hour, but in no case less than 22½¢ per hour.

(3) This Special Certificate is issued on representations by the employer that (a) experienced stitching machine operators are not available and (b) that he is actually in need of learners at sub-minimum rates in order to prevent curtailment of opportunities for employment.

(4) Under this Special Certificate, no learner shall be employed at a sub-minimum wage until and unless the Certificate is posted and kept posted in a conspicuous Place in the plant in which learners are employed.

(5) This Special Certificate is issued ex parte under Section 14 of the said Act and Section 522.5 (b) of the Regulations, Part 522, as amended. For fifteen days following the publication of this notice, the Administrator will receive detailed written objections as provided for in said Section 522.5 (b). Such Special Certificate may be canceled as of the date of issuance and if so canceled, reimbursement of all persons employed under such Certificate must be made in an amount equal to the difference between the applicable statutory minimum wage and any lesser wage paid such persons.

Name and address of firm	Product	Number of learners
Ide Shirt Corporation, Troy, New York.	Men's shirts	50

Signed at Washington, D. C., this 16th day of November 1939.

GUSTAV PECK,
Assistant Director,
Hearings Branch.

[F. R. Doc. 39-4250; Filed, November 16, 1939; 12:29 p. m.]

NOTICE OF ISSUANCE OF SPECIAL CERTIFICATES FOR THE EMPLOYMENT OF LEARNERS IN THE HOSIERY INDUSTRY

Notice is hereby given that Special Certificates for the employment of learners in the Hosiery Industry at hourly wages lower than the minimum wage applicable under Section 6 of the Fair Labor Standards Act of 1938 (Hosiery Wage Order) are issued to the employers listed below effective November 17, 1939, to July 17, 1940, subject to the following terms:

OCCUPATIONS AND WAGE RATES

The employment of learners in the Hosiery Industry under these Certificates is limited to the following occupations, learning periods, and minimum wage rates:

[*Here follows, in the original document, a table identical with that appearing at Page 3827 of the "Federal Register" for Thursday, September 7, 1939.*]

NAME AND ADDRESS OF FIRM AND NUMBER OF LEARNERS

Arlington Hosiery Mill, Inc., Sunbury, Pennsylvania (30 learners).

Rutledge Hosiery Mill, Rutledge, Tennessee (24 learners).

These Special Certificates are issued ex parte under Section 14 of the said Act, Section 522.5 (b) of Regulations Part 522, as amended. For fifteen days following the publication of this notice the Administrator will receive detailed written objections to any of these Special Certificates and requests for hearing from interested persons. Upon due consideration of such objections as provided for in said Section 522.5 (b), such Special Certificates, or any of them, may be canceled as of the date of their issuance and if so canceled, reimbursement of all persons employed under such certificates must be made in an amount equal to the difference between the applicable statutory minimum wage and any lesser wage paid such persons.

Signed at Washington, D. C., this 16th day of November 1939.

GUSTAV PECK,
Assistant Director,
Hearings Branch.

[F. R. Doc. 39-4251; Filed, November 16, 1939; 12:29 p. m.]

NOTICE OF ISSUANCE OF SPECIAL CERTIFICATE FOR THE EMPLOYMENT OF LEARNERS IN THE KNITTED WEAR INDUSTRY

Notice is hereby given that Special Certificate for the employment of learners in the Knitted Wear Industry at hourly wages lower than the minimum wage applicable under Section 6 of the Fair Labor Standards Act of 1938 is issued ex parte under Section 14 of the said Act, Section 522.5 (d) of Regulations Part 522, as amended, to the employer listed below effective November 17, 1939, until October 24, 1940, subject to the following terms:

OCCUPATIONS, WAGE RATES, AND CONDITIONS

The employment of learners in the Knitted Wear Industry under this Certificate is limited to the following occupations, learning periods, and minimum wage rates:

(1) A learner is a person who has not been previously employed for more than eight (8) weeks in the aggregate during the preceding three (3) years upon sewing machine or knitting machine operations respectively.

(2) The employment of learners under this Certificate is limited to the operation of sewing machines and knitting machines and for eight (8) weeks for any one learner. During this period no learner may be paid at a rate less than 22½¢ an hour provided, however, that if experienced workers are paid on a piecework rate learners shall be paid at least the same piecework rate and shall receive earnings on such rate if in excess of 22½¢ per hour but in no event less than 22½¢ per hour.

(3) This Special Certificate is issued on representations by the employer that experienced operators are not available.

(4) This Special Certificate may be cancelled as of the date of its issuance if found that experienced workers were available when the Certificate was issued and may be cancelled prospectively or as of the date of violation if found that any of its terms have been violated or that experienced workers have become available. No learner may be employed under this Certificate if hired when an experienced worker was available.

(5) Under this Special Certificate no learner shall be employed at a sub-minimum wage until and unless the Certificate is posted and kept posted in a conspicuous place in the plant in which learners are employed.

NUMBER OF LEARNERS

Not in excess of 5% of the total number of sewing machine and knitting machine operators employed in the plant may be employed under this Certificate, unless otherwise indicated hereinbelow opposite the employer's name:

NAME AND ADDRESS OF FIRM AND PRODUCT

Van Raalte Co., Inc., 84 Sweeney Street, North Tonawanda, New York (3 learners), warp knit fabrics.

Signed at Washington, D. C., this 16th day of November 1939.

GUSTAV PECK,
Assistant Director,
Hearings Branch.

[F. R. Doc. 39-4252; Filed, November 16, 1939; 12:29 p. m.]

SECURITIES AND EXCHANGE COMMISSION.

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 15th day of November, 1939.

[File Nos. 47-45; 57-13]

IN THE MATTERS OF IOWA PUBLIC SERVICE COMPANY AND AMERICAN UTILITIES SERVICE CORPORATION

NOTICE OF AND ORDER FOR HEARING

An application, pursuant to sections 10 (a) (2) and 10 (a) (3) of the Public Utility Holding Company Act of 1935, having been duly filed with this Commission by the Iowa Public Service Company; and

An application, pursuant to Rule U-12D-1 under the Public Utility Holding Company Act of 1935, having been duly filed with this Commission by American Utilities Service Corporation;

It appearing that these matters are related and should be held and considered together:

It is ordered, That a joint hearing on such matters be held on December 7, 1939, at 10:00 o'clock in the forenoon of that day, at the Securities and Exchange Building, 1778 Pennsylvania Avenue NW., Washington, D. C. On such day the hearing-room clerk in room 1102 will advise as to the room where such hearing will be held. At such hearing, if in respect of any declaration, cause shall be shown why such declaration shall become effective.

It is further ordered, That Charles S. Lobingier or any other officer or officers of the Commission designated by it for that purpose shall preside at the hearings in such matters. The officer so designated to preside at any such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said Act and to a trial examiner under the Commission's Rules of Practice to continue or postpone said hearing from time to time.

Notice of such hearing is hereby given to such declarant or applicant and to any other person whose participation in such proceeding may be in the public interest or for the protection of investors or consumers. It is requested that any person desiring to be heard or to be admitted as a party to such proceeding shall file a notice to that effect with the Commission on or before December 2, 1939.

The matter concerned herewith is in regard to the proposed acquisition by Iowa Public Service Company, pursuant to Sections 10 (a) (2) and 10 (a) (3) of the Public Utility Holding Company Act of 1935, of the entire gas manufacturing and gas distribution facilities of Iowa Central Utilities Company, a Delaware corporation, located in and about the City of Charles City, Floyd County, Iowa, excluding, however, cash on hand and in banks; accounts receivable; automotive equipment; merchandise equipment; and materials and supplies. The consideration involved is in the sum of *sixty-five thousand dollars* ($65,000).

Iowa Central Utilities Company is a wholly owned subsidiary of American Utilities Service Corporation, a registered holding company, and application is made by said holding company, pursuant to Rule U-12D-1 under the Public Utility Holding Company Act of 1935, for the approval of the sale of assets by such wholly owned subsidiary.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 39-4242; Filed, November 16, 1939; 11:26 a. m.]

United States of America—Before the Securities and Exchange Commission

At a regular session of the Securities and Exchange Commission held at its office in the City of Washington, D. C., on the 15th day of November, A. D., 1939.

[File No. 47-46]

IN THE MATTER OF GREAT NORTHERN UTILITIES COMPANY

NOTICE OF AND ORDER FOR HEARING

An application pursuant to sections 10 (a) (2) and 10 (a) (3) of the Public Utility Holding Company Act of 1935, having been duly filed with this Commission by the above-named party;

It is ordered, That a hearing on such matter be held on December 5, 1939, at 10:00 o'clock in the forenoon of that day, at the Securities and Exchange Building, 1778 Pennsylvania Avenue, NW., Washington, D. C. On such day the hearing-room clerk in room 1102 will advise as to the room where such hearing will be held. At such hearing, if in respect of any declaration, cause shall be shown why such declaration shall become effective.

It is further ordered, That Edward C. Johnson or any other officer or officers of the Commission designated by it for that purpose shall preside at the hearings in such matter. The officer so designated to preside at any such hearing is hereby authorized to exercise all powers granted to the Commission under section 18 (c) of said Act and to a trial examiner under the Commission's Rules of Practice to continue or postpone said hearing from time to time.

Notice of such hearing is hereby given to such declarant or applicant and to any other person whose participation in such proceeding may be in the public interest or for the protection of investors or consumers. It is requested that any person desiring to be heard or to be admitted as a party to such proceeding shall file a notice to that effect with the Commission on or before December 1, 1939.

The matter concerned herewith is in regard to the proposed acquisition by Great Northern Utilities Company of the entire physical assets (with some minor exceptions) and the franchises and good will of Citizens Gas Company, a Montana corporation, for the sum of *Ninety Thousand Dollars* ($90,000) cash plus a sum equal to the cost of any improvements made to the property pending consummation of the proposed sale.

By the Commission.

[SEAL] FRANCIS P. BRASSOR,
Secretary.

[F. R. Doc. 39-4243; Filed, November 16, 1939; 11:26 a. m.]